GOVERNMENT VERSUS CONSERVATIONISTS

The Forest (Conservation) Amendment Bill, 2023, seeking to reconcile the 1980 legislation with the Supreme Court's 1996 ruling in* T.N. Godavarman Thirumulpad vs Union of India, *has raised hackles

KEY CHANGES PROPOSED

- The FCA to cover land declared as a forest under the Indian Forest Act, 1927, or noted in government records as forest on or after Oct. 25, 1980
- Will not apply to land changed from 'forest use' to 'use for non-forest purpose' on or before the SC ruling on Dec. 12, 1996
- Exempts forest land within 100 km along international borders/LoC/LAC for strategic constructions; similar provisions for Naxal-affected areas
- Extends the scope of activities allowed in forests to zoos, safaris, etc., giving the Centre discretion to add to the list



Illustration by SIDDHANT JUMDE

THE CORE CONCERNS

- Critical issues left to the discretion of the executive
- Dilutes the SC ruling that said the Act would apply to all forests, irrespective of land ownership
- Plantations, mangroves, scrub forests, etc. not recorded as forests after 1980 remain vulnerable
- Large tracts of prime forest in the Northeastern states will be exempted for strategic projects

GOVERNMENT'S MOTIVATION

- Broaden the horizon of the Act to address new challenges relating to ecological, social and environmental developments
- Clarify the scope of applicability of the Act on various lands—private and government—to remove ambiguities
- Mitigate the impact of climate change, achieve the national targets of Net Zero Emission by 2070
- Fast-track strategic projects of national importance; provide habitations along public roads and railways access to arterial roads

the ambit of the FCA once the bill gets notified in the official gazette.

The amendments, suggest legal experts, may go against the Supreme Court's 1996 verdict that has pretty much driven the forest and wildlife jurisprudence for decades. While interpreting the 1980 Act, the apex court in its ruling in the *T.N. Godavarman Thirumulpad vs. Union of India* case on December 12, 1996, had clarified that since the legislation's purpose was to check deforestation that impacts ecological balance, it would apply to all forests, irrespective of the land ownership—whether government or private. States were told to work out a definition of such 'deemed forests' in light of the ruling. The following year, Madhya Pradesh—the state with the largest area of forest cover—decided that any land with 200 or more trees per hectare will be defined as a forest. Many states, however, have failed to comply, leaving large tracts of green cover vulnerable.

This is because, post the amendment, the Act will cease to apply to any land that the authorities have failed to include as a forest in government records after October 25, 1980, the day of its enactment. Similarly, it will leave out the parcels of land that have been redefined from 'forest use' to 'use for non-forest purposes' by any empowered authority before December 12, 1996. In effect, any non-forest activity in these forests will not need any clearance under the FCA. This could affect plantations, mangroves and scrub forests, including an estimated 50,000 acres of forested land in the Aravalli range in Haryana, that have not been notified as a 'deemed forest' yet. Environmental lawyer Ritwik Dutta suggests a major trigger for the amendment was the SC's 2022 ruling in the *Narinder Singh vs Divesh Bhutani* case pertaining to Aravallis. It had reiterated that the



"We need to focus on agroforestry and increase tree cover. The goal is important for the entire world"

BHUPENDER YADAV, *Minister of environment, forest & climate change, while tabling the bill in Parliament*

"The proposed changes in the Act are so fundamental and sweeping that it is more a new law than an amendment"

PRERNA SINGH BINDRA, *Conservationist and former member, National Board for Wildlife*

